

SPECIAL PROVISIONS

PART XXI SCOPE → ARTICLE 370 STATUS → ARTICLE 371 AMENDMENT LADDER → DEVELOPMENT → CONSENT → COMMITTEES → LOCAL OPPORTUNITY → SCHEDULE FIREWALL → EXAM SYNTHESIS

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g4 • explicit approval of this exact generation is required • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00

PART XXI SCOPE AND ASYMMETRY ARCHITECTURE

PART XXI: TEMPORARY, TRANSITIONAL AND SPECIAL PROVISIONS

ONE UNION -> ordinary State framework + purpose-specific constitutional difference.

THIS TOPIC OWNS

Articles 371-371J; minimum Article 370/35A status needed for legal distinction.

CROSS-OWNED

Fifth/Sixth Schedules -> Polity 26 | J&K/Ladakh UT machinery -> Polity 25.

ANSWER LINE

Equality permits calibrated difference; special treatment remains inside one Constitution.

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CONSTITUTIONAL BASIS

- PART XXI: TEMPORARY, TRANSITIONAL AND SPECIAL PROVISIONS
- ONE UNION -> ordinary State framework + purpose-specific constitutional difference.
- THIS TOPIC OWNS

POWER / PROCEDURE

- Articles 371-371J; minimum Article 370/35A status needed for legal distinction.
- CROSS-OWNED
- Fifth/Sixth Schedules -> Polity 26 | J&K/Ladakh UT machinery -> Polity 25.

CHECK / LIMIT

- ANSWER LINE
- Equality permits calibrated difference; special treatment remains inside one Constitution.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Equality permits calibrated difference; special treatment remains inside one Constitution.

01

STAGE 01

ARTICLE 370 AND ARTICLE 35A LEGAL TIMELINE

1947 accession -> Article 370 temporary application mechanism -> 1954 Order inserts Article 35A

-> J&K Constituent Assembly dissolves in 1957 -> Presidential-Order practice continues.

5 AUGUST 2019: C.O. 272 applies Constitution comprehensively.

6 AUGUST 2019: C.O. 273 renders former Article 370 provisions inoperative.

31 OCTOBER 2019: Reorganisation creates J&K UT with legislature + Ladakh UT without.

TRAP: printed in text does not mean operative; Article 35A is not a current guarantee.

Sampat Prakash (1968)

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CONSTITUTIONAL BASIS

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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP: printed in text does not mean operative; Article 35A is not a current guarantee.

02

STAGE 02

IN RE ARTICLE 370 AND CURRENT FEDERAL STATUS

IN RE ARTICLE 370 (2023)

Temporary provision | no separate internal sovereignty | Article 370(3) power survived 1957

| constitutional result upheld | Article 367 route unnecessary/invalid to the stated extent.

NOT FINALLY DECIDED

Permanent validity of converting J&K State into Union Territories.

CURRENT 28 AUGUST 2026

J&K: UT with elected legislature; Statehood pending, no judicial deadline.

Ladakh: UT without legislature; Statehood/Sixth Schedule demands remain unenacted.

In Re: Article 370 of the Constitution (2023)

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POWER / PROCEDURE

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- CURRENT 28 AUGUST 2026

CHECK / LIMIT

- J&K: UT with elected legislature; Statehood pending, no judicial deadline.
- Ladakh: UT without legislature; Statehood/Sixth Schedule demands remain unenacted.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Ladakh: UT without legislature; Statehood/Sixth Schedule demands remain unenacted.

- J&K: UT with elected legislature; Statehood pending, no judicial deadline.
- Ladakh: UT without legislature; Statehood/Sixth Schedule demands remain unenacted.

STAGE 03 ARTICLE 371 AMENDMENT AND ACTOR LADDER

MEMORY FORMULA: STATE -> ARTICLE -> AMENDMENT -> ACTOR -> PROTECTED INTEREST.

- 371F 36th (1975) | 371G 53rd (1986) | 371H 55th (1986).
- 371I 56th (1987) | 371J 98th (2012; effective 2013).
- MEMORY FORMULA: STATE -> ARTICLE -> AMENDMENT -> ACTOR -> PROTECTED INTEREST.

STAGE 04 DEVELOPMENT MODELS: ARTICLES 371 AND 371J

for persons belonging by birth or domicile. No fixed percentage appears in Article 371J itself.

→ **ARTICLE 371J — KARNATAKA**

- for persons belonging by birth or domicile. No fixed percentage appears in Article 371J itself.

STAGE 05 CONSENT SHIELDS: NAGALAND AND MIZORAM

TRAP: subject-specific consent is not a general parliamentary veto.

- Also contains Tuensang and bounded transitional Governor law-order arrangements.

- Assembly minimum 40.
- TRAP: subject-specific consent is not a general parliamentary veto.

STAGE 06 COMMITTEE MODELS: ASSAM AND MANIPUR

06

• customary law/procedure, customary civil-criminal justice, and land/resources.

• Parallel shield for Mizo practices, customary law/procedure, customary justice and land;

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP: subject-specific consent is not a general parliamentary veto.

STAGE 06

COMMITTEE MODELS: ASSAM AND MANIPUR

ARTICLE 371B — ASSAM

President may constitute an Assembly committee of members from specified tribal areas

plus such other Assembly members as the order provides.

ARTICLE 371C — MANIPUR

President structures Hill Areas Committee and State-business rules.

Governor has special responsibility, reports annually to President; Union may direct State.

TRAP: neither committee is itself a Sixth Schedule autonomous district council.

ARTICLE 371B — ASSAM

President may constitute an Assembly committee of members from specified tribal areas

plus such other Assembly members as the order provides.

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CONSTITUTIONAL BASIS

• ARTICLE 371B — ASSAM

• President may constitute an Assembly committee of members from specified tribal areas

• plus such other Assembly members as the order provides.

POWER / PROCEDURE

• ARTICLE 371C — MANIPUR

• President structures Hill Areas Committee and State-business rules.

• Governor has special responsibility, reports annually to President; Union may direct State.

CHECK / LIMIT

• TRAP: neither committee is itself a Sixth Schedule autonomous district council.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP: neither committee is itself a Sixth Schedule autonomous district council.

07

STAGE 07

LOCAL OPPORTUNITY: ARTICLES 371D AND 371E

ARTICLE 371D — ANDHRA PRADESH AND TELANGANA

President may order equitable public-employment and educational opportunity, local areas/cadres,

and related allocation rules. Section 97 of the 2014 Reorganisation Act adapted the text.

Former Andhra Pradesh Administrative Tribunal abolished by G.S.R. 30(E), 14 January 2020.

ARTICLE 371E — ANDHRA PRADESH ONLY

Parliament may establish a Central University. It is not a reservation clause.

CONSTITUTIONAL BASIS

• ARTICLE 371D — ANDHRA PRADESH AND TELANGANA

• President may order equitable public-employment and educational opportunity, local areas/cadres,

• and related allocation rules. Section 97 of the 2014 Reorganisation Act adapted the text.

POWER / PROCEDURE

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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Parliament may establish a Central University. It is not a reservation clause.

08

STAGE 08

INTEGRATION AND LAW-ORDER MODELS: 371F, 371H, 371I

ARTICLE 371F — SIKKIM

36th Amendment integration settlement: representation, law/court continuity, one Lok Sabha seat,

Assembly at least 30; Governor discretion for peace/equitable advancement subject to President.

ARTICLE 371H — ARUNACHAL PRADESH

Governor consults ministers but uses individual judgment in bounded law-order responsibility;

President may terminate it. Assembly at least 30.

ARTICLE 371I — GOA: Assembly at least 30; no customary-law shield.

ARTICLE 371F — SIKKIM

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Assembly at least 30; Governor discretion for peace/equitable advancement subject to President.

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CONSTITUTIONAL BASIS

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POWER / PROCEDURE

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CHECK / LIMIT

• ARTICLE 371I — GOA: Assembly at least 30; no customary-law shield.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ARTICLE 371I — GOA: Assembly at least 30; no customary-law shield.

09

STAGE 09

ARTICLE 371 VERSUS FIFTH AND SIXTH SCHEDULES

ARTICLE 371 FAMILY — Part XXI, State-specific constitutional clauses.

FIFTH SCHEDULE — Article 244(1): Scheduled Areas, President, Governor regulations/reports, TAC.

SIXTH SCHEDULE — Article 244(2): autonomous district/regional councils in Assam, Meghalaya,

Tripura and Mizoram with specified legislative, judicial and fiscal powers.

DO NOT MERGE

371A/G Assembly consent != Sixth Schedule council autonomy != Fifth Schedule guardianship.

CONSTITUTIONAL BASIS

• ARTICLE 371 FAMILY — Part XXI, State-specific constitutional clauses.

• FIFTH SCHEDULE — Article 244(1): Scheduled Areas, President, Governor regulations/reports, TAC.

POWER / PROCEDURE

• Tripura and Mizoram with specified legislative, judicial and fiscal powers.

• DO NOT MERGE

SPECIAL PROVISIONS • TILE 3/4 • same master rows 5583-8817 of 11608 • continues below

09

STAGE 09 ARTICLE 371 VERSUS FIFTH AND SIXTH SCHEDULES

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Tripura and Mizoram with specified legislative, judicial and fiscal powers. DO NOT MERGE 371A/G Assembly consent != Sixth Schedule council autonomy != Fifth Schedule guardianship.

CONSTITUTIONAL BASIS

- ARTICLE 371 FAMILY — Part XXI, State-specific constitutional clauses.
- FIFTH SCHEDULE — Article 244(1): Scheduled Areas, President, Governor regulations/reports, TAC.
- SIXTH SCHEDULE — Article 244(2): autonomous district/regional councils in Assam, Meghalaya,

POWER / PROCEDURE

- Tripura and Mizoram with specified legislative, judicial and fiscal powers.
- DO NOT MERGE
- 371A/G Assembly consent != Sixth Schedule council autonomy != Fifth Schedule guardianship.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 371A/G Assembly consent != Sixth Schedule council autonomy != Fifth Schedule guardianship.

10

STAGE 10 PYQ AND CURRENT-INSTITUTION TRAPS

NORTH EASTERN COUNCIL Statutory under NEC Act, 1971; regional Governors + Chief Ministers + three President nominees. Union Home Minister chairs; DoNER Minister is Vice-Chair under amended framework. Not an Article 371 body and not a Sixth Schedule council. CURRENT TRAPS

J&K Statehood pending | Ladakh demands unenacted | AP tribunal abolished | Kalyana Karnataka is current name, but Article 371J retains Hyderabad-Karnataka wording.

NORTH EASTERN COUNCIL

Statutory under NEC Act, 1971; regional Governors + Chief Ministers + three President nominees.

Union Home Minister chairs; DoNER Minister is Vice-Chair under amended framework.

Not an Article 371 body and not a Sixth Schedule council.

CONSTITUTIONAL BASIS

- NORTH EASTERN COUNCIL
- Statutory under NEC Act, 1971; regional Governors + Chief Ministers + three President nominees.
- Union Home Minister chairs; DoNER Minister is Vice-Chair under amended framework.

POWER / PROCEDURE

- Not an Article 371 body and not a Sixth Schedule council.
- CURRENT TRAPS
- J&K Statehood pending | Ladakh demands unenacted | AP tribunal abolished

CHECK / LIMIT

- | Kalyana Karnataka is current name, but Article 371J retains Hyderabad-Karnataka wording.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: | Kalyana Karnataka is current name, but Article 371J retains Hyderabad-Karnataka wording.

11

STAGE 11 MAINS SYNTHESIS AND QUALIFIED CONCLUSION

MAINS SPINE Define asymmetry -> classify development/consent/committee/integration models -> name State, Article, amendment and actor -> show protective benefit -> test equality, local minorities, accountability and implementation -> compare Fifth/Sixth Schedules only where relevant -> qualified verdict.

REFORM Annual reports + outcome data + transparent reservation rules + local participation + review. CONCLUSION

MAINS SPINE

Define asymmetry -> classify development/consent/committee/integration models

-> name State, Article, amendment and actor -> show protective benefit

-> test equality, local minorities, accountability and implementation

-> compare Fifth/Sixth Schedules only where relevant -> qualified verdict.

CONSTITUTIONAL BASIS

- MAINS SPINE
- Define asymmetry -> classify development/consent/committee/integration models
- > name State, Article, amendment and actor -> show protective benefit

POWER / PROCEDURE

- > test equality, local minorities, accountability and implementation
- > compare Fifth/Sixth Schedules only where relevant -> qualified verdict.
- REFORM

CHECK / LIMIT

- Annual reports + outcome data + transparent reservation rules + local participation + review.
- CONCLUSION
- Indian unity is strengthened by bounded, reviewable difference—not mechanical uniformity.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Indian unity is strengthened by bounded, reviewable difference—not mechanical uniformity.

E

EXTRA OPTIONAL ADVANCED — CONSTITUTIONAL METHOD AND DIFFERENTIATED CITIZENSHIP

OPTIONAL ADVANCED — NOT REQUIRED FOR A CORE ANSWER PRESIDENT'S RULE AND FEDERAL CONSENT DIFFERENTIATED CITIZENSHIP AND PROPORTIONALITY BASIC STRUCTURE AND JUDICIAL REVIEW REMAIN CONTROLS

CONSTITUTIONAL METHOD

- President's Rule and federal consent
- validity versus legitimacy

RIGHTS CONTROL

- differentiated entitlements
- proportionality and local minorities

OPTIONAL STATUS — This optional advanced stage is unnecessary for a competent core answer and adds constitutional-method refinement.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Advanced analysis asks whether lawful asymmetry remains proportionate, participatory and faithful to federalism.